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OPR: WVOT Cybersecurity

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

Publications are available online at
https://sites.google.com/wv.gov/wvot-extranet/policy-governance/executive-branch-policies

Questions and change recommendations related to this publication shall be directed to this publication's Office of Primary Responsibility (OPR). This publication shall be reviewed every two years to ensure continued alignment with current legal, operational, and strategic requirements. Revisions will be undertaken as necessary.

SUMMARY OF VERSIONS AND CHANGES

Version	Date	Revision Description
	01/30/2015	Added Change History
	09/01/2016	Reviewed, no changes
	10/20/2017	Reviewed, minor administrative updates made
	01/25/2023	Reviewed, contact information updated and Appendix A removed
	11/18/2025	Outdated terms removed and links corrected, Appendix B renamed to Appendix A.

1. PURPOSE

1.1. The purpose of this Procedure is to specify the process for State agencies when requesting an investigation into any State employee's technology-based activity. **This procedure should not be construed to convey any expectation of privacy.**

2. SCOPE

2.1. This policy applies to all departments (including agencies, boards, authorities, and commissions) within the Executive Branch of WV State Government, excluding constitutional officers, the WV Board of Education, the WV Department of Education, and the county boards of education that have access to or use State-provided resources. However, the West Virginia Office of Technology(WVOT) recommends that all agencies, including those excluded above, follow this procedure.

2.2. Where there are policies in place which provide less restrictions or security than this policy, those policies will be superseded by this policy. In instances where existing state and federal laws, regulations, and policies are more restrictive than this policy, the more restrictive provisions will prevail.

2.3. Supervisors and managers must follow this procedure to initiate investigations of persons using State equipment and systems.

3. RESPONSIBILITIES

3.1. Agency Responsibilities:

3.1.1. To gain access to information about employees' technology-based activities, a suspected violation of law or policy should be identified to initiate the required technical investigations.

3.1.2. Agencies should exercise discretion when requesting reports of user activities, and should involve both Agency Legal and Personnel services in the decision to submit such requests. These requests should not be for HR matters such as employee attendance or to determine if an employee is meeting their work expectations.

3.1.3. Any agency supervisor or manager may initiate a request for access. However, only Office Directors, Commissioners, Cabinet Secretaries, or the *Legislature's Commission on Special Investigations has the authority to approve and submit requests for investigations of staff in their own office, agency, or department. (*may request from any office)

3.2. WVOT Responsibilities:

3.2.1. The Service Desk, or any WVOT employee, must immediately transfer all investigation requests to the Cyber Security Office (CSO).

3.2.2. All employees involved in technical investigations are required to keep all information discovered in the process confidential.

4. PROCEDURE

4.1. ALL investigation requests must be submitted to WVOT through electronic form found at https://technology.wv.gov/policy-governance/ot-policies.

4.2. When requesting a technology-related investigation for any State employee the following information must be submitted:

4.2.1. Name, title, agency name, and phone number of the supervisor or manager requesting the investigation;

4.2.2. Name, e-mail address, and userid of the individual whose activity will be investigated;

4.2.3. Purpose of Investigation or Suspected Violation (ex: to confirm suspicion of abuse or misuse; to remove cloud of suspicion, etc.) As a guide to the kinds of violations that merit investigation, examples include, but are not limited to the following:

4.2.3.1. Suspected violations of the law. Examples include, but may not be limited to the following:

4.2.3.1.1. Criminal enterprise;

4.2.3.1.2. Sexual harassment; and

4.2.3.1.3. Willful misuse of legally protected information, etc.

4.2.3.2. Suspected violations of State policy. Examples include, but may not be limited to the following (For more information, see “Appendix A” of WVOT-PO1001 - West Virginia State Information Security Policy:

4.2.3.2.1. Commercial enterprise purposes or for-profit activities

4.2.3.2.2. Sexually explicit use

4.2.3.2.3. Chain letters

4.2.3.2.4. Disabling security systems or controls

4.2.3.2.5. Breach of confidentiality, unethical conduct

4.2.4. Interval of Investigation (ex: 03/01/23 to 08/15/23)

4.2.5. Report Due Date (based upon urgency)

4.3. The CISO will work with other Directors as needed to assign investigative tasks to the appropriate technicians.

4.4. The WVOT will perform a best-effort investigation over the specified interval to determine the existence of findings that could indicate a violation. The authorized requestor agrees to the following:

4.4.1. The WVOT may utilize any sources, tools, or technologies needed to provide the most accurate, detailed, and relevant information possible.

4.4.2. The individual under investigation will remain separated from the investigator at all times.

4.5. The CISO will send the authorized requestor a detailed report of the findings resulting from the investigation. This will follow the same path as the request (technician –CISO– requestor). Criminal activity findings may be reported directly to law enforcement.

4.6. Agencies using investigative services provided by the WVOT may be billed according to a standard rate structure.

5. POLICY SPECIFIC DEFINITIONS

5.1. Cabinet Secretary – The head of a Department who is appointed by the Governor.

5.2. Chief Information Security Officer (CISO) - Person designated by the CIO to oversee Information Security practices and initiatives for the Executive Branch of WV State government, excluding the constitutional officers.

5.3. Chief Information Officer (CIO) – The person responsible for the State's information resources.

5.4. Commissioner - The head of a State organizational entity (Bureau, Commission, etc.)

5.5. E-mail – Any message sent electronically through one or more computers and/or communications networks, and in most cases has a human originator and receiver.

5.6. Employee – Individuals retained and authorized on a temporary or permanent basis by the State of West Virginia to perform a service. For the purposes of Information Technology and Security policy, the term "employee" shall include the following: contractors, subcontractors, contractors' employees, volunteers, county health department staff, business associates, and any other persons who are determined and notified by the WVOT to be subject to this policy. This definition does not create any additional rights or duties.

5.7. Legislature's Commission on Special Investigations – The group charged with performing a range of investigative tasks, including suspected purchasing violations, illegal conduct by State employees, conflicts of interest, bribery of State officials, and malfeasance. This body may also recommend action to the Attorney General, prosecuting attorney, or other authority empowered to act upon such recommendation. (See https://www.wvlegislature.gov/Joint/csi.cfm)

5.8. Office Director – The designated or appointed head of a state organizational entity who generally reports directly to the head of the agency, such as a Commissioner.

5.9. Cyber Security Office (CSO) - The functional unit charged with the responsibility to undertake and sustain initiatives to promote, enhance, monitor, and govern actions, standards, and activities necessary to safeguard data and information systems within the Executive Branch of WV, as provided in West Virginia Code §5A-6-4a and the Governor's Executive Order No. 6-06.

5.10. Procedure – A series of steps followed in a definite regular order ensuring the consistent and repetitive approach to actions.

5.11. Userid – unique "name" which each user is identified to a computer system

5.12. West Virginia Division of Personnel – The Division in the Department of Administration established by WV CODE § 29-6-1 et seq., which is responsible for human resource management for operating agencies in the classified and classified-exempt service of WV State government.

5.13. West Virginia Office of Technology (WVOT) - The division of the Department of Administration established by WV Code § 5A-6-4a, et. seq., which is led by the State's CTO and designated to acquire, operate, and maintain the State's technology infrastructure. The WVOT is responsible for evaluating equipment and services, and reviewing IT contracts.

6. RELEVANT MATERIALS AND DOCUMENTS

6.1. This procedure is consistent with the following federal and state authorities

6.1.1. WVOT-PO1001 - West Virginia State Information Security Policy

6.1.2. https://www.wvlegislature.gov/Joint/csi.cfm

6.1.3. WVOT Publications Central Library Website https://sites.google.com/wv.gov/wvot-extranet/policy-governance/executive-branch-policies